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DOJ threatens to sue California over new gun sale restriction law

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The Trump administration's Department of Justice issued a warning to California's leadership regarding a new gun sale restriction law it considers an "unconstitutional 'Glock Ban.'"

The law that is set to go into effect on July 1 would add new strict regulations, prohibiting licensed firearms dealers from selling, exchanging or delivering any semiautomatic handgun with a cruciform trigger that could be easily modified into a "machinegun-convertible pistol."

The DOJ's Assistant Attorney General for the Civil Rights Division Harmeet K. Dhillon on June 24 threatened to file a lawsuit against California, arguing that the law limits citizens' ability to purchase "legal firearms," according to an open letter that was sent to California Gov. Gavin Newsom and State Attorney General Rob Bonta.

"The Second Amendment guarantees the right of law-abiding citizens to keep and bear arms for self-defense," Dhillon's open letter reads. "Because handguns are the most popular weapon chosen by American for self-defense, a prohibition of their use is invalid."

"They should not be forced to settle for decade-old models of handguns to ensure that they remain safe inside or outside the home," she added.

What is California's new gun restriction law?

Dhillon refers to the new gun regulations law as a "Glock Ban." Over 30 models developed by Glock Inc. have been removed from California's "Handguns Certified for Sale" list.

The new law, Assembly Bill 1127, authored by Jesse Gabriel (D-Encino) and Catherine Stefani (D-San Francisco), does not reference any specific gun makers in its text. It focuses on restricting the new sale of semiautomatic handguns that could be easily modified into a "machinegun-convertible pistol."

"AB 1127 will hold the firearm industry accountable for their deadly lack of action to address the growing proliferation of converted automatic weapons," reads a press release from Gabriel's office after the bill was signed into law in 2025.

Certain models can allow semi-automatic handguns to fire without repeatedly pulling the trigger, if an accessory called a machine gun conversion device, also known as a "Glock Switch," is installed.

The use of machine gun conversion devices is illegal under the federal National Firearms Act. At least 28 states, including California and Indiana, have prohibited the ownership and use of Glock switches in specific laws, according to a count by Everytown for Gun Safety, a nonprofit gun control organization.

"No gun sold in California should be just a screwdriver away from becoming a machine gun," said Stefani after the law was passed. "With Governor Newsom's signature on AB 1127, we are closing a deadly loophole that has fueled gun violence in our communities. California is sending a clear message: we will always put the safety of our families ahead of the gun industry's bottom line."

As a result of the law, over 100 gun models were removed from California's "Handguns Certified for Sale" list since the start of 2026.

There are still over 900 handguns that are available for purchase within California, according to the state's Handgun Roster.

This law will not affect current gun owners, and does not restrict the transfer or sales of the firearm between private individuals.

However, if a licensed firearms dealer is caught violating the new law, they could face a fine on the first offense. A subsequent offense could see the dealer have their license suspended or revoked.

For the third violation, the firearms dealer could face a misdemeanor charge and license revocation.

"AB 1127 will encourage gun manufacturers to finally address this issue and prevent their guns from being easily converted into deadly automatic weapons by prohibiting the sale of any semi-automatic handgun in California that is easily convertible into a fully automatic machine gun," reads a press release from Gabriel's office after the bill was signed into law.

Dhillon's rebuttal to AB 1127

In her open letter, Dhillon argues that both California's Assembly Bill 1127 and the handgun roster violate Californians' 2nd Amendment right by hindering people's ability to obtain these firearms and by making it a crime to acquire firearms from firearm dealers.

She notes that the Department of Justice is "willing to enter pre-suit negotiation," if California agrees to do three specific things:

1. "Immediately cease enforcement of laws identified above"

2. "Acknowledge the unconstitutionality of these laws"

3. "Agree to enter into a court-enforceable consent decree permanently enjoining the State from violating its citizens' constitutional rights through these and any similar laws."

Dhillon noted that if California doesn't respond to the department's demands by June 30, the department might file a complaint.

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